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OFFICE OF THE ATTORNEY GENERAL
MASSACHUSETTS GENERAL LAWS Ch.258, §4
PRESENTMENT CLAIM FORM

MAURA HEALEY
ATTORNEY GENERAL

OFFICE OF THE ATTORNEY GENERAL
TRIAL DIVISION

One Ashburton Place
[REDACTED]

CLAIMANT INFORMATION

Name: Jestina Rebecca Weems
[REDACTED]

If Claimant is an insurance company, name of subrogee: _____

CLAIM AGAINST

Name of Commonwealth Agency Involved (if applicable): Chief Medical Examiners office/
Lowell police Department

Name of Commonwealth Employee Involved (if applicable): ME. Gerald Feign. Lowell
Officers: John J. Sheenan, Daniel R. Brady, William M. Taylor, William F. Busby, Lewis
Hunter, Berry Chevalier, David Tousignant and Garrett Sheehan

Registration # of Commonwealth Vehicle (if applicable): _____

Was a Police Report Completed? YES ☒ NO _____ (If yes, please attach)

NATURE OF CLAIM: Please describe your claim. (Continue on additional pages if necessary.)

My father Gary Jerome Weems was murdered on 11/6/93. With the help of the medical examiner Gerald Feign and local police Gary's murder was covered up. The medical examiner Gerald Feign exposed of by the body. The Weems family was never notified about Mr. Weems death nor where he was buried. Mrs. Weems learned of her late husbands passing after her and her mother called local hospitals, police and shelters. Officer hunter also lied about Mr. Weems personal belonging. Mr. Hunter told Mrs. Weems at the time, Rebecca Judge and Jestina Richardson that Mr. Weems had no personal belonging on his person when he was found. That same day another officer retrieved Mr. Weems ID and personal belongs from the desk of Mr. Hunter. In a witness statement by Kenneth Newhall he tells the officer three times that Mr. Weems had a wife and kids and the where they lived. Mr. Weems not only had a state issued ID [REDACTED] his Death certificate. Yet no one was notified.

At this time I would like to have my father's body moved to Cambridge Cemetery, plot number 30 on the plan. Request to get the city Gary is buried in to pay all expenses of opening and closing both piece of property, exhumation and the transport. Before the body is buried for the second time I would like another autopsy report done on the skull of the skeleton. This will determine whether Gary was struck in the back of the head causing his death. I would then like to sue both departments for conspiracy for murder, kidnapping and mishandling of a corpse.

Suing both departments for 3.3 million dollars for 23 years of pain and suffering and burying his body in a poppers grave for John Joes. We've had a family plot even before the death of my father and my father deserves to be buried with his family. My father wasn't a slave during his time of death nor was he a property of the state. He has rights and he has a family with rights under The constitution and our civil rights as Americans. Because the body hasn't been claimed by the family and they never determined a cause of Death this is still an open case.

FOR AGO USE ONLY:

DATE PRESENTMENT RECEIVED _____

SIX MONTH DATE _____

SOL DATE _____

CASE MANAGEMENT NUMBER _____

EXECUTIVE OFFICE: _____

OTHER INFORMATION

Date of Incident: 11-6-1993

Location of Incident: 291 summer st, Lowell Mass.

Read this important notice and sign your presentment claim.

- Under most circumstances, your presentment claim will be considered a public record and will be available to any member of the public upon request.
- I understand that when I submit this presentment claim the Attorney General's Office cannot give me legal advice and cannot act as my personal lawyer.
- I certify that the information contained in this presentment claim is true to the best of my knowledge.

Signed:

Jestina Weems

Date:

3-4-15

Printed Name:

Jestina Rebecca Weems

***Please note: Whether using this form or not, presentment claims must be made in accordance with the requirements of M.G.L. Ch. 258. The Attorney General's Office cannot provide you with legal advice or act as your attorney. If you have questions concerning the specific application or interpretation of the law, please consult with a private attorney.**

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ATTORNEY GENERAL**

**TRIAL DIVISION
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time of death nor was he a property of the state. He has rights and he has a family with rights
under The constitution and our civil rights as Americans.

Because the body hasn't been
claimed. And the cause of Death is undetermined, this is still an open case.

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OTHER INFORMATION

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- I understand that when I submit this presentment claim the Attorney General's Office cannot give me legal advice and cannot act as my personal lawyer.
- I certify that the information contained in this presentment claim is true to the best of my knowledge.

Signed: Justina Weems Date: 3-4-15
Printed Name: Justina Rebecca Weems

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EXECUTIVE OFFICE: _____



Commonwealth of Massachusetts
CITY OF LOWELL

CERTIFICATE RECORD OF DEATH

**** Copy of Record of Death ****

Office of the City Clerk: **Richard C. Johnson**

Registered Number: [REDACTED]

Date of Record: **December 08, 1993**

DECEDENT

Name: **GARY JEROME WEEMS**

Date of Death: **November 06, 1993**

Age: **33 Yrs**

Gender: **Male**

Marital Status: **Unknown**

Color/Race: **BLACK**

7 WALTER TERRACE SOMERVILLE, MA

Name of Spouse: **--**

Occupation: **(UNKNOWN)**

Birthplace: **SOMERVILLE, MA**

Immediate Cause of Death: **OPIATE INTOXICATION**

Place of Burial or Removal: **WESTLAWN CEMETERY LOWELL, MA "**

MOTHER

Maiden Name of Mother: **AUDREY MOORE**

Birthplace of Mother: **(UNKNOWN)**

FATHER

Name of Father: **DONALD WEEMS**

Birthplace of Father: **(UNKNOWN)**

I, the undersigned, hereby certify that I am the Clerk of the City of Lowell; that as such I have custody of the records of deaths required by law to be kept in my offices; I do hereby certify that the above is a true copy from said records.

WITNESS my hand and the SEAL OF THE CITY OF LOWELL at Lowell on this Tuesday, November 25, 2003.

Richard C. Johnson
Richard C. Johnson
CITY CLERK OF LOWELL

50 hours
open : shoot
case

EXHIBIT 1

breathing better, stopped sweating and was talking a little bit.

This was sometime around twenty minutes of eleven, after Gary started responding, me and Eddie went to the Lemon Tree and I brought some burritos, (2) coffees, and a pack of cigarettes. Then I left and went to where I sleep which is the Empire Room, known as the abandoned building on Middlesex St.

I don't know what time I got up, but it was before 7:00 AM as I was able to make breakfast at the shelter. I went to breakfast, after breakfast, I went to the Lemon Tree and then I saw Kenny. Kenny went down to the Liquor Store, Burns, to cash some cans in, I asked him how Gary was doing and Kenny said that he and Gary were talking later in the night.

I told Kenny that I was going to check on Gary while Kenny was going to cash in the cans. I went to the building and then I saw Gary in the back-yard, laying face down. I put Gary's jacket over him and then went and told Kenny how I found Gary.

While we had been in the building, ^{Gary's Gary stop shooting around there} Kenny shot Gary once with coke while Eddie shot him twice with coke. Kenny and Eddie first each shot Gary with a speed-ball, while the last shot given Gary was by Eddie and that was just Coke. Gary was awake the first two times that Kenny and Eddie shot him up, but the last shot he got by Eddie, Gary had passed out. Eddie said that he was shooting Gary up to revive him, I don't know, this was the first time that I had ever been in that situation.

While we were in the building, Gary still had some money with him, I don't know how much but he had some. I don't know what happened to the money after I left.

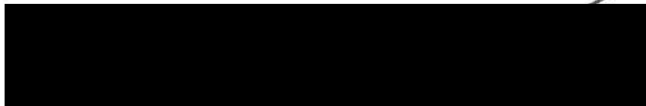
I know that it was twenty to eleven when I left as there was a wind-up clock in the building as Kenny and Gary use it in order that they get up in time for work.

I have no idea how Gary got out in the back yard, when I went to the Lemon Tree, Eddie had come with me. The only ones left in the building at that time were Kenny and Gary, and Gary was alive when I left but he was in and out of consciousness.

This is all I know about what happened until the next morning when I saw Gary in the back yard of the building. I didn't shoot Gary up at all that night, I have shot him up in the past, but I didn't do it at all that evening.

Witness(s):

D. De... V... ..





OFFICE OF THE CHIEF MEDICAL EXAMINER

UNIVERSITY OF MASSACHUSETTS MEDICAL CENTER

55 LAKE AVENUE NORTH

WORCESTER, MASSACHUSETTS 01005

AUTOPSY REPORT

Case No. CME 93-366

Name Gary Weems Age 33 Race B Sex M

Homeless (Middlesex Shelter)

Date and Time of Death 11-6-93 8:39 AM

Date and Time of Autopsy 11-8-93 11:00 AM

Medical Examiner Feigin

County and District Middlesex

CAUSE OF DEATH: Opiate intoxication

MANNER OF DEATH:

- ☐ Natural
☐ Accident
☐ Suicide
☐ Homicide
☒ Undetermined

Pathologist

Gerald Feigin

Tewksbury Hospital